

Ross on Crime

H

Hearsay

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Hearsay

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Ten aspects of hearsay

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[8.1300] Rule against hearsay

In *Bannon v The Queen* (1995) 185 CLR 1; 132 ALR 87; 83 A Crim R 370 Dawson, Toohey and Gummow JJ said (at 22; 101; 385):

Out of court statements are not evidence of the truth of what is said unless the statement falls within an exception to the rule against hearsay. One such exception admits evidence of a confessional nature against the maker. Another renders admissible a statement made by a third party, since deceased, which is against his or her pecuniary or proprietary interest.

[8.1305] Rationale of the rule

In *R v Khelawon* [2006] 2 SCR 787; (2006) 274 DLR (4th) 385; 215 CCC (3d) 161 (SCC) Charron J delivering the judgment of the court said (at 793; 388–389; 165 [2]):

As a general principle, all relevant evidence is admissible. The rule excluding hearsay is a well-established exception to this general principle. While no single rationale underlies its historical development, the central reason for the presumptive exclusion of hearsay statements is the general inability to test their reliability. Without the maker of the statement in court, it may be impossible to inquire into that person's perception, memory, narration or sincerity. The statement itself may not be accurately recorded. Mistakes, exaggerations or deliberate falsehoods may go undetected and lead to unjust verdicts. Hence, the rule against hearsay is intended to enhance the accuracy of the court's findings of fact, not impede its truth-seeking function.

In *R v Howse* [2006] 1 NZLR 433 (PC) Lord Roger of Earlsferry and Sir Andrew Leggatt, in dissent on other matters, said (at 450 [46]):

[T]he court recognises the continuing importance of the basic exclusionary rule itself. It guards against the “dangers” in hearsay evidence. The nature of those dangers is well known. Second-hand reports are notoriously prone to be inaccurate. Most importantly, the person who made the allegation cannot be challenged in the court and the strengths and weaknesses of the allegation cannot be readily explored.

In *Lee v The Queen* (1998) 195 CLR 594; 102 A Crim R 289; 72 ALJR 1484; 157 ALR 394 the High Court said in a joint judgment (at 602; 400–401; 295 [32]):

The common law of evidence has long focused upon the quality of the evidence that is given at trial and as required that the evidence that is given at trial is given orally, not least so that it might be subject to cross-examination. That is why the exclusionary rules of the common law have been concerned with the quality of the evidence tendered – by prohibiting hearsay, by permitting the giving of opinions about matters requiring expertise by experts only, by the “best evidence rule” and so on. And the concern of the common law is not limited to the quality of evidence, it is a concern about the manner of trial. One very important reason why the common law set its face against hearsay evidence was because otherwise the party against whom the evidence was led could not cross-examine the maker of the statement. Confrontation and the opportunity for cross-examination is of central significance to the common law adversarial system of trial.

[8.1310] To prove what was said

Evidence of spoken words to prove the fact of what was said will be admissible if relevant. The rule against hearsay will exclude such evidence if tendered to prove the truth of such words.

In *Ratten v The Queen* [1972] AC 378; [1971] 3 All ER 801; (1971) 56 Cr App R 18 (PC), Lord Wilberforce, giving the advice of the Board, said (at 387; 805; 23):

The mere fact that evidence of a witness includes evidence as to words spoken by another person who is not called is no objection to its admissibility. Words spoken are facts just as much as any other action by a human being. If the speaking of the words is a relevant fact, a witness may give evidence that they were spoken. A question of hearsay only arises when the words spoken are relied on “testimonial”, ie as establishing some fact narrated by the words. Authority is hardly needed for this proposition, but their Lordships will restate what was said in the judgment of the Board in *Subramaniam v Public Prosecutor* [1956] 1 WLR 965 at 970:

Evidence of a statement made to a witness by a person who is not himself called as a witness may or may not be hearsay. It is hearsay and inadmissible when the object of the evidence is to establish the truth of what is contained in the statement. It is not hearsay and is admissible when it is proposed to establish by the evidence, not the truth of the statement but the fact that it was made.

Thus in *Bull v The Queen* (2000) 201 CLR 443; 110 A Crim R 562; 171 ALR 613 the central issue was the admissibility of a woman's telephone conversation with Mr Bull from which he inferred her consent to sexual intercourse by visiting his house. McHugh, Gummow and Hayne JJ said

that the conversation was admissible. Their Honours, after referring to *Subramaniam v Public Prosecutor* [1956] 1 WLR 965 at 970 said (at 478; 640; 589 [118]):

If the relevance of the evidence depended upon the truth of these assertions, the hearsay rule would make the evidence inadmissible. However, the relevance of the conversation depends not on the truth of these assertions but on the facts that Bull said “Oh if you come over here we might be able to do one of your fantasies if you want”, that, in relation to “cobwebs”, he said “Well maybe we can blow them away for you”, and that the complainant subsequently went to the house (which fact was not in dispute). Regardless of the truth value of these statements by Bull, the fact that they were made by Bull and that the complainant responded in the way she did is relevant to the complainant's reason for going to the house in the light of her subsequent action in attending the house in response to the telephone call. Her state of mind – her reason for going to the house – was relevant to whether she consented to the sexual activities that took place after she arrived and her statements in their context were evidence of her state of mind: *Walton v The Queen* (1989) 166 CLR 283; 38 A Crim R 276; 84 ALR 59 at 288–289, 300–302, 307.

Other cases

Lee v The Queen (1998) 195 CLR 594; 102 A Crim R 289; 72 ALJR 1484; 157 ALR 394;

Klein v The Queen (2007) 172 A Crim R 290 (NSW CCA).

[8.1315] Statements of victim who later died

In *R v Howse* [2006] 1 NZLR 433 (PC) the appellant had been convicted of murdering two step-daughters. The motive was said to be an effort to conceal the sexual indignities he had visited upon them. The trial judge admitted diary notes of those indignities and complaints to others. The Board advised that all this evidence was inadmissible hearsay. By a majority the Board applied the proviso and dismissed the appeal.

The statement of a victim who died may be admitted as a dying declaration. Alternatively it may be part of the *res gestae* if it relates to the commission of the crime. In *R v Plevac* (1995) 84 A Crim R 570 (NSW CCA) a man had thrown petrol over a woman and set her on fire. The accused was her estranged husband. She died soon after.

At the trial the judge admitted her conversation with the ambulance driver as part of the *res gestae*. (It was common ground that the conversation was not a dying declaration).

Q: Did your husband or boyfriend do this?

A: No.

Q: Did you recognise the man who did?

A: No, but my husband has something to do with this, he's threatened me with this before.
(She then sighed) To burn me.

The court held in a joint judgment (at 577) that the second question and answer was inadmissible for they did not relate to the commission of the crime. And for that reason the first question and answer were admissible. Appeal allowed.

Other cases

R v Starr [2000] 2 SCR 144; 190 DLR (4th) 591; 147 CCC (3d) 449 (SCC);

R v Hytch (2000) 114 A Crim R 573 (Qld CA);

Walton v The Queen (1989) 166 CLR 283; 38 A Crim R 276; 84 ALR 59.

Other cases

Dying declaration at [4.6100]; **Res gestae** at [18.3000]; and **Telephone** at [20.500].

[8.1320] Rule not to be applied inflexibly

In *Walton v The Queen* (1989) 166 CLR 283; 38 A Crim R 276; 84 ALR 59 Mason CJ said (at 293; 66; 282):

The hearsay rule should not be applied inflexibly. When the dangers which the rule seeks to prevent are not present or are negligible in the circumstances of a given case there is no basis for a strict application of the rule. Equally, where in the view of the trial judge those dangers are outweighed by other aspects of the case lending reliability and probative value to the impugned evidence, the judge should not then exclude the evidence by a rigid and technical application of the rule against hearsay.

[8.1325] Uniform Evidence Acts

In *Vickers v The Queen* (2006) 160 A Crim R 195 (NSW CCA) Simpson J, with whom the others agreed, said (at 208 [65]):

Part 3.1 of the *Evidence Act* was designed and intended to relax the old common law prohibition on the admission of hearsay evidence. It was not designed or intended to abolish the prohibition altogether or to render remote (and therefore potentially extraneous and

unreliable) hearsay statements admissible. It was intended to contain a brake upon the relaxation of the common law hearsay rule; that brake is contained in s 82.

The approach to hearsay under the Act is a significant departure from the common law. The UEA allows in a greater amount of out of court statements and effectively abolishes the distinction between admitting statements for their truth or simply to prove that they were made. Also, unlike the position at common law, implied (ie, unintended) assertions are not excluded under the hearsay rule.

The definition of hearsay is not confined to representations made by people other than the witness. It also includes a previous representation made by a witness.

The main exceptions relevant to criminal proceedings are:

1. evidence relevant for a non-hearsay purpose (s 60);
2. first-hand hearsay if the maker of the representation is unavailable (s 65) or available (s 66);
3. contemporaneous statements about a person's health etc, (s 66A);
4. business records (s 69);
5. tags and labels (s 70);
6. electronic communications (s 71);
7. use of evidence in interlocutory proceedings (s 75);
8. admissions (s 81);
9. exceptions to the rule excluding evidence of judgments and convictions (s 92(3)); and
10. character of and expert opinion about accused persons (ss 110 and 111).

Section 59 does not apply where a representation is relevant simply because it was made (ie, irrespective of its truth), as opposed to being relevant only if it is true. This is similar to the position at common law where representations that are relevant simply because they are made are termed “original evidence”. The fact that original evidence is admissible under the Act is underlined by s 60, which states that the “hearsay rule does not apply to evidence of a previous representation that is admitted because it is relevant for a purpose other than proof of an asserted fact”.

However, s 60 marks a considerable departure from the common law. At common law, where evidence was relevant for a non-hearsay purpose, it could only be used for that purpose. Section 60 changes this so that where evidence is admissible for a non-hearsay purpose it can be used as proof of the asserted fact. Thus, where for example, a prior inconsistent statement is admitted in order to discredit a witness, the out of court statement can now also be used as evidence of the contents of the statement.

An important departure in the Act from the common law is the establishment of the concept of first-hand hearsay and the many exceptions that relate to this form of hearsay. Pursuant to s 62(1)

a representation is first-hand hearsay when it was “made by a person who had personal knowledge of an asserted fact”. Section 62(2) then states:

A person has personal knowledge of the asserted fact if his or her knowledge of the fact was, or might reasonably be supposed to have been, based on something that the person saw, heard or otherwise perceived, other than a previous representation made by another person about the fact.

If a representation fits this criteria it is first-hand hearsay and admissible if it also comes within the numerous exceptions that apply to this form of evidence. The exceptions are broadly based on the rationale that this form of evidence is more likely to be reliable than other forms of hearsay. An important part of the definition of first-hand hearsay is that the words “might reasonably be supposed” import an objective component into the test. This is especially important where the person who made the representation is not the person giving evidence of it in the witness box.

See also

[Lee v The Queen \(1998\) 195 CLR 594; 102 A Crim R 289; 72 ALJR 1484; 157 ALR 394;](#)

[Australian Handsets Pty Ltd \(in liq\) v Alvarez \[2011\] NSWSC 160;](#)

[Sio v The Queen \(2016\) 259 CLR 47; 259 A Crim R 573; \[2016\] HCA 32.](#)

[8.1330] Common law exceptions generally

In [Adam v The Queen \(2001\) 207 CLR 96; 183 ALR 625; 123 A Crim R 280](#) Gaudron J said (at 113 [55] footnote 33):

Common law exceptions to the hearsay rule included statements in public documents, admissions by a party against that party's interests, voluntary confessions of criminal conduct, evidence given in earlier proceedings involving the same parties and similar issues, evidence of age, ancient documents produced from proper custody, expert opinion evidence (particularly as to the sources on which the expert opinion was based) and postmarks. See *Cross on Evidence*, 6th Aust ed (2000), Ch 17. See also [Pollitt v The Queen \(1992\) 174 CLR 558](#) as to a more recent common law exception to the hearsay rule in relation to the identity of parties to a telephone conversation.

[8.1335] Police acting “upon information received”

In [R v Nguyen \[1999\] 1 VR 457; \(1998\) 104 A Crim R 169 \(CA\)](#) the applicant had been convicted of heroin trafficking. Police had given evidence of attendance at the scene from “information

received on that evening in relation to a suspected drug delivery”. The evidence was held to be hearsay and the appeal allowed.

[8.1340] What the doctor said

In *R v FP* (2007) 169 A Crim R 318 (Qld CA) the appellant had been convicted of indecent dealing with a child under the age of 12 years. The complainant gave evidence of having an early period. She said that she went to the doctors. She then said what the doctor had told her about the early period and that the doctors had said that something must have happened. No doctor gave evidence. At trial, defence counsel did not object to the hearsay evidence and even addressed on it. The trial judge did not direct the jury on the hearsay and defence counsel took no exception. Held: appeal allowed. The trial judge should have directed on the hearsay and the failure resulted in a miscarriage of justice.

[8.1345] Out of court statements

An out of court statement by one accused is not evidence for or against another accused.

In *Bannon v The Queen* (1995) 185 CLR 1; 132 ALR 87; 83 A Crim R 370 each of the two accused said the other had killed the two deceased by knife. The co-accused, Ms Calder, had spoken to two prosecution witnesses within two hours of the killing suggesting that she had killed the victims.

The prosecution alleged that one or other of the accused was responsible for each death as principal and that the other acted in concert with or aided and abetted the principal, as the only evidence of who had done the stabbing was found in their own accounts.

Ms Calder did not give evidence. Mr Bannon relied on those admissions of Ms Calder which exculpated him in that they inculpated her. The trial judge directed the jury that Ms Calder's admissions could not be used by Mr Bannon. The High Court said the trial judge was right.

In *Jones v The Queen* (2009) 83 ALJR 671; 254 ALR 626 two accused were charged with a stabbing murder. Each said that he was only an accessory to the other. Neither gave evidence. Mr Jones sought evidence from police that the co-accused had been charged and convicted of stabbing one of Mr Jone's mates and its full details. He wanted to show his fear of the co-accused. The trial judge only allowed evidence that the co-accused was on bail on that charge, but forbade other evidence as hearsay. Held: the trial judge was correct. The evidence of the police witnesses would have been hearsay. Further, it was not relevant.

In *R v Lowrie* [2000] 2 Qd R 529; (1999) 106 A Crim R 565 (CA) the trial judge had failed to give the proper direction, that is, that an accused's out of court statement is evidence for or against that accused alone. It is not evidence for or against another accused. The appeal was allowed.

[8.1350] Confession by another to the crime: generally not admissible

In *Bannon v The Queen* (1995) 185 CLR 1; 132 ALR 87; 83 A Crim R 370 Dawson, Toohey and Gummow JJ said (at 22; 101; 385):

As the law stands in this country, there is no exception to the hearsay rule which renders admissible either against or in favour of an accused hearsay evidence of a confession by a co-accused or by a third party. See eg, *In re Van Beelen* (1974) 9 SASR 163; *R v Szach* (1980) 23 SASR 504; *Wade v Gilroy* (1986) 83 FLR 14; *R v Greatorex* (1994) 74 A Crim R 496.

Re Van Beelen (1974) 9 SASR 163 (FC) was a petition of mercy which was referred to the Full Court. A man called Sandercock had made a statement from which it might be inferred that he possessed such special knowledge of events that only a killer would know. The court held the statement to be inadmissible.

In *R v Szach* (1980) 23 SASR 504; 2 A Crim R 321 (CCA) the accused was convicted of the murder of an Adelaide lawyer, Derrance Stevenson. The prosecution case was that they were homosexual lovers and that the accused shot Stevenson and put the body in a freezer. Before the body was found, a man spoke to the receptionist at the Legal Services Commission saying that he wanted to see a lawyer about a crime. The receptionist asked “Have you a solicitor?” “Only Derrance Stevenson but when I left him last night he was in no condition to act for anyone”. The trial judge directed the jury to reject this as hearsay. On appeal, the Court of Criminal Appeal upheld the direction. King CJ said (at 572–573; 332):

The jury was entitled to use the esoteric knowledge disclosed by the statement as the basis of an inference, if it saw fit to draw the inference, that the unknown man had been with the deceased on the previous night. It was not entitled to use the hearsay narrative as evidence that the unknown man had been with the deceased.

In *R v Greatorex* (1994) 74 A Crim R 496 (NSW CCA) the defence was wrongly stopped from cross-examining police on their failure to investigate a confession by a now dead man named David Arthur. He had allegedly confessed that it was he who deposited the drugs in a jar in the appellant's garden and that she knew nothing of it. But the Court of Criminal Appeal said that such evidence could not be relied on to show the truth of the confession of Arthur.

In *R v Blastland* [1986] AC 41; [1985] 2 All ER 1095; 81 Cr App R 226 (HL), the accused was convicted of murder of a boy after buggery. A man named Mark had successively made and withdrawn confessions. It was held that the confessions of Mark had been properly excluded as evidence.

In Queensland, hearsay statements claiming responsibility for a killing are admissible in favour of some other person who is charged with the offence:

R v Zullo [1993] 2 Qd R 572 at 574 (CCA);

R v K; Ex parte Attorney-General (Qld) (2002) 132 A Crim R 108 at 113–114 [17] (CA);

R v Martin (2002) 134 A Crim R 568 at 575 [21] (Qld CA).

Assertion by another that the accused did not commit the crime

R v Ria [1994] 2 NZLR 212 (HC).

[8.1355] Telephone call

In *R v Astill* (1992) 63 A Crim R 148 (NSW CCA) Kirby P (at 157) summarised *Walton v The Queen* (1989) 166 CLR 283; 38 A Crim R 276; 84 ALR 59:

In *Walton* (1989) 166 CLR 283; 38 A Crim R 276; 84 ALR 59, the disputed evidence was of a telephone conversation with the deceased. It was relevant to establish who the caller was. After speaking for some time with the caller, the deceased had said to her three-year-old son “Daddy's on the phone”. The son spoke to the caller saying “Hello Daddy”. There was evidence that the son called the accused, and no-one else, “Daddy”. The trial judge warned the jury that the evidence did not establish that the accused had telephoned the deceased to arrange the meeting which led to her death. However, he ruled that the evidence was admissible to show the deceased's intention and expectation at the time the conversations took place. But he also directed the jury that the deceased's statements should not be treated as evidence that she actually met the accused.

The High Court unanimously held that, for some purposes at least, the evidence of the witness who overheard the telephone conversation was admissible. Wilson, Dawson and Toohey JJ held that the conversation could be admitted, save for the words uttered by the son, upon the ground that it showed that the deceased believed that the person she was arranging to meet was the accused. Deane J held that it was admissible on the ground that it was direct confirmatory evidence of the making of the arrangement. Mason CJ took a somewhat broader view. He considered that the evidence was admissible upon the *Ratten* [1972] AC 378; [1971] 3 All ER 801; 56 Cr App R 18 principle. He held that it would have been open to the trial judge to have admitted, as well, the evidence of the son's statement for the purpose of identifying the maker of the telephone call. See also *Benz* (1989) 168 CLR 110 at 143; 26 and *Pollitt* (1992) 174 CLR 558; 108 ALR 1; 62 A Crim R 190 at 565f, 594, 621–622; 193f, 215–216, 237.

In *Astill*, the accused was convicted of manslaughter of a baby. The baby had been in the care of the occupants of a flat, one of whom was the accused. The death must have been caused by the accused, Hughes or Trajkovski. The baby's mother phoned three times. H or T spoke. On the first call T said the accused was asleep. Later calls established cause for concern. From this is to be inferred that H (with or without T) had assaulted the baby. All the witnesses were available. At the first trial evidence of the phone calls was admitted. In the second it was excluded. It was held that the evidence was improperly excluded and the appeal was allowed with a new trial ordered.

See also

R v Ryan (1984) 14 A Crim R 97 (NSW CCA).

See also

Telephone at [20.500].

[8.1360] Res gestae exception

In *Walton v The Queen* (1989) 166 CLR 283; 38 A Crim R 276; 84 ALR 59 Wilson, Dawson and Toohey JJ said (at 304; 74; 290):

An assertion may be admitted to prove the facts asserted if it is part of the res gestae, but it is then an exception to the rule against hearsay: see *Adelaide Chemical and Fertilizer Co Ltd v Carlyle* (1940) 64 CLR 514. The justification for that exception is now said to lie in the spontaneity or contemporaneity of assertions forming part of the res gestae which tends to exclude the possibility of concoction or distortion: *Ratten* [1972] AC 378; [1971] 3 All ER 801; 56 Cr App R 18 at 389–90; *R v Andrews* [1987] AC 281 at 300–1: see also *Adelaide Chemical and Fertilizer Co Ltd v Carlyle* (1940) 64 CLR 514 at 531. Of course, the discussion in *Ratten* [1972] AC 378; [1971] 3 All ER 801; 56 Cr App R 18 and *Andrews* [1987] AC 281 was in the context of the res gestae rule. The unlikelihood of concoction or distortion is not sufficient of itself to render a hearsay statement admissible: see *Vocisano v Vocisano* (1974) 130 CLR 267 at 273.

See also, *Bristow v The Queen* [2020] SASCF 91.

[8.1365] Examples

In *Ratten v The Queen* [1972] AC 378; [1971] 3 All ER 801; (1971) 56 Cr App R 18 a telephonist was told “Get me the police please”. The Crown case was that the voice was that of the victim just before being shot by the accused.

R v Benz (1989) 168 CLR 110; 44 A Crim R 1; 89 ALR 339 concerned a charge of murder against a de facto wife and her de facto stepdaughter. The deceased was battered and stabbed but died from drowning. On the bridge two women were seen in the early hours of the morning at the time of the alleged death. The younger woman said that her mother was feeling sick.

See also

Res gestae at [18.3000].

[8.1370] Knowledge or state of mind exception

Note the decision in *Walton v The Queen* (1989) 166 CLR 283; 38 A Crim R 276; 84 ALR 59 in which Wilson, Dawson and Toohey JJ stated (at 300):

When a person's state of mind is relevant, evidence tending to prove that fact is admissible. That evidence may, of course, take the form of conduct on the part of the person whose state of mind is in question from which the state of mind might be inferred. But it might also take the form of statements made by the person or by another from which a similar inference might be made.

Deane J said (at 307):

[E]vidence of a relevant out-of-court statement is admissible to prove the maker's knowledge or state of mind in a case where that knowledge or state of mind is itself a fact in issue or provable (as against the party against whom the evidence is tendered) as a fact relevant to a fact in issue.

The evidence in question was of a witness who said that the victim told him she was going to meet the accused. Such evidence is often led by the defence. In *Walton v The Queen* (1989) 166 CLR 283; 38 A Crim R 276; 84 ALR 59 the majority said (at 301):

An example of statements made by another being admissible in evidence upon this basis is to be found in *Subramaniam v Public Prosecutor* [1956] 1 WLR 965, a case in which the appellant was convicted in Malaya of being illegally in possession of ammunition. His defence was that he had been captured by terrorists and was at all times acting under duress. It was held by the Privy Council that the trial judge was in error in ruling out, as hearsay, evidence of a conversation between the terrorists and the appellant. The evidence was admissible, not to prove the truth of any statements made by the terrorists, but as bearing upon the state of mind of the appellant. As was observed at 970:

The fact that the statement was made, quite apart from its truth, is frequently relevant in considering the mental state and conduct thereafter of the witness or of some other person in whose presence the statement was made. In the case before their Lordships statements could have been made, to the appellant by the terrorists, which, whether true or not, if they had been believed by the appellant, might reasonably have induced in him an apprehension of instant death if he failed to conform to their wishes.

The evidence excluded in that case was, therefore, admissible. Evidence of a statement or statements made by the very person whose state of mind is in question may be similarly admissible.

So where an identifying witness forgets which photograph he identified from a folder of photographs prepared and shown to him by the police, evidence may be led of what the witness said and did at the time of identification: *Alexander v The Queen* (1981) 145 CLR 395; 34 ALR 289.

See also

R v Goodall [1982] VR 33 (CCA).

[8.1375] Spontaneity exception

In *R v Astill* (1992) 63 A Crim R 148 (NSW CCA), Kirby J said (at 156):

There is a further basis upon which such evidence may be received. It is where the assertion is so apparently spontaneous as to lend weight to the conclusion that it was not concocted or self serving. This feature may then permit the reception of the evidence even over objection. The theoretical basis for doing so is, as Dixon J explained in *Adelaide Chemical & Fertilizer Co Ltd v Carlyle* (1940) 64 CLR 514 at 532f: “reliance on the greater trustworthiness of statements made at once and without reflection ...”. The fundamental basis for the disinclination of judges to exclude such evidence was explained by Lord Wilberforce in *Ratten* [1972] AC 378 at 389 (PC):

The possibility of concoction, or fabrication, where it exists, is on the other hand an entirely valid reason for exclusion, and is probably the real test which judges in fact apply. In their Lordships' opinion this should be recognised and applied directly as the relevant test: the test should be not the uncertain one whether the making of the statement was in some sense part of the event or transaction ... As regards statements made after the event it must be for the judge, by preliminary ruling, to satisfy himself

that the statement was so clearly made in circumstances of spontaneity or involvement in the event that the possibility of concoction can be disregarded.

And later (at 391):

These authorities show that there is ample support for the principle that hearsay evidence may be admitted if the statement providing it is made in such conditions (always being those of approximate but not exact contemporaneity) of involvement or pressure as to exclude the possibility of concoction or distortion to the advantage of the maker or the disadvantage of the accused.

On this exception the High Court warned in *Walton v The Queen* (1989) 166 CLR 283; 38 A Crim R 276; 84 ALR 59 per Wilson, Dawson and Toohey (at 304):

An assertion may be admitted to prove the facts asserted if it is part of the *res gestae*, but it is then an exception to the rule against hearsay: see *Adelaide Chemical and Fertilizer Co Ltd v Carlyle* (1940) 64 CLR 514. The justification for that exception is now said to lie in the spontaneity or contemporaneity of assertions forming part of the *res gestae* which tends to exclude the possibility of concoction or distortion. (authorities cited) ...

The unlikelihood of concoction or distortion is not sufficient of itself to render a hearsay statement admissible: see *Vocisano v Vocisano* (1974) 130 CLR 267, at 273.

[8.1380] Dying declaration exception

See **Dying declaration** at [\[4.6100\]](#).

[8.1385] Tags, labels and postmarks

Legislation

Uniform Evidence Acts s 70 provide:

70. The hearsay rule does not apply to a tag or label attached to, or writing placed on, an object (including a document) if the tag or label or writing may reasonably be supposed to have been so attached or placed:

(a) in the course of a business; and

- (b) for the purpose of describing or stating the identity, nature, ownership, destination, origin or weight of the object, or of the contents (if any) of the object.

(*Evidence Act 1995* s 70 has extra sub-sections).

Hearsay documents at common law

Label to show contents: *Patel v Comptroller of Customs* [1966] AC 356; [1965] 3 All ER 393 (PC); *Gosden v Billerwell* (1980) 47 FLR 357; 31 ALR 103; 2 A Crim R 1 (FCA) per Brennan J (at 361; 107–108; 5).

Interview register to prove date and time of interview: *R v Clune (No 1)* [1975] VR 723 (CCA).

Airline ticket to prove the name of a passenger: *Re Gardner: Ex parte RJ Gardner Pty Ltd* (1968) 13 FLR 345 (Gibbs J).

Records on cards by employees showing engine, chassis and cylinder block numbers: *Myers v DPP* [1965] AC 1001; [1964] 2 All ER 881; 48 Cr App R 348 (HL).

Not hearsay documents at common law

Postmark to show country of origin: *R v Kelly* (1975) 24 FLR 441 (SA CCA); *R v Leroy* [1984] 2 NSWLR 441; (1984) 13 A Crim R 469 (CCA).

See also

A Apps, “Verification of Photographs” (1992) 9 Aust Bar Rev 202;

J Bartrouny, “Admissibility of Computer Produced Statements” (1993) 67 Law Inst J 611;

GPJ McGinley and V Wayne, “Implied Assertions and the Hearsay Prohibition” (1993) 67 ALJ 657;

PB Carter, “Hearsay: Whether and Whither?” (1993) 109 LQR 573.;

J Hunter, “Unreliable Memoirs and the Accused: Bending and Stretching Hearsay” (1994) 18 Crim LJ 76;

A Rein, “The Scope of Hearsay” (1994) 110 LQR 431;

YF Lim, “A Logical View of the Hearsay Rule” (1994) 68 ALJ 724;

KJ Arenson, “Unravelling the Hearsay Riddle; A Novel Approach” (1994) 16 Syd LR 342;

DC Price, “The Hearsay Rule and Statements of Intention” (1995) 69 ALJ 594;

A Palmer, “Hearsay: A Definition That Works” (1995) 14 U Tas LR 29.

[8.1390] Ten aspects of hearsay

1. The word “hearsay” properly means what a person says out of court and which is not admissible in evidence. Hence the term “the rule against hearsay”.
2. The reason for the rule is to reduce the chance of mistake or conjecture or invention of evidence. A witness may not properly remember what was said. Further it is not on oath and cannot be tested.
3. What a person says out of court is not admissible if it is not relevant or if a party wants to prove the truth of what was said. An example may be talk or a telephone call in the absence of the accused by a person who later dies.
4. What a person says out of court is admissible if it is relevant and if the party introducing the evidence wants to prove only the fact that the words were said but not their truth.
5. Courts talk about “exceptions to the rule against hearsay”.
6. A confession is an exception to the rule against hearsay. So what an accused says out of court can be admissible. A confession by one accused is not evidence for or against another accused. But in a joint crime such as conspiracy, what one accused says of the aims and plans which are on foot is evidence against all.
7. There are other exceptions to the rule against hearsay. They include the spontaneity exception, the dying declaration and the *res gestae* exception.
8. In a sexual case, recent complaint by the victim is admissible to show consistency.
9. There are statutory exceptions. An example is [s 26E of the Evidence Act \(NT\)](#) which says that the complaint of a child victim in a sexual case may be evidence of facts in issue.
10. The rule against hearsay applies to documents as well as to spoken words.